

WLD-031 (7/07)

Approved as to  
form only:  
641

FOR NEW LICENSES AND TRANSFER  
**LICENSE AND/OR PERMIT APPLICATION**  
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

Date: 1/18/13**To be completed by the City, Town or County Clerk:**

Date Filed: 10/23/13 18-065617

|                              | Annual Fee       | Prorated Fee |
|------------------------------|------------------|--------------|
| Basic Fee:                   | \$               | \$           |
| Add'l Dispensing Room Fee:   | \$               | \$           |
| Transfer Fee:                | \$ <u>100.00</u> |              |
| Total License Fee Collected: | \$ <u>100.00</u> | \$           |
| Publishing Fee Collect:      | \$ <u>100.00</u> |              |

Required Attachments Received: Yes ☐

Advertising Dates(4): Oct 31, Nov. 7, 14, 21, 2013

Hearing Date: Nov. 1 25 1 30/13

Local Licensing Number: 628

**LICENSING AUTHORITY:** Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

A copy must be immediately forwarded to:  
State of Wyoming Liquor Division  
1520 E 5<sup>th</sup> Street  
Cheyenne WY 82002-0110

Formerly Held by: OC Cheyenne, LLC

Applicant: Wadsworth Old Chicago, Inc.

Trade Name (dba): Old Chicago Restaurant

Premise: 1734 Meadowland Drive

City: Cheyenne State: WY Zip: 82009 County: Laramie

Mailing Address: 8001 Arista Place, 5th Floor

City: Broomfield State: CO Zip: 80021

Business Telephone Number: 303-664-4113 (corp)

Fax Number: 303-942-7411 (corp)

E-Mail Address: cmowry@cwrestaurants.com

For the license term: Upon issuance

Through: March 31, 2014

|                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>FILING FOR</b><br><input type="checkbox"/> NEW<br><input type="checkbox"/> TRANSFER LOCATION<br><input checked="" type="checkbox"/> TRANSFER OWNERSHIP                                                                                                                                                                                                   | <b>TYPE OF LICENSE OR PERMIT</b><br>(CHOOSE ONLY ONE)<br><input checked="" type="checkbox"/> RETAIL LIQUOR LICENSE<br><input type="checkbox"/> on-premise only<br><input type="checkbox"/> off-premise only<br><input type="checkbox"/> combination on/off premise<br><input type="checkbox"/> RESTAURANT LIQUOR LICENSE<br><input type="checkbox"/> RESORT LIQUOR LICENSE<br><input type="checkbox"/> COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT<br><input type="checkbox"/> VETERANS CLUB<br><input type="checkbox"/> FRATERNAL CLUB<br><input type="checkbox"/> GOLF CLUB<br><input type="checkbox"/> SOCIAL CLUB<br><input type="checkbox"/> MICROBREWERY<br><input type="checkbox"/> WINERY<br><input type="checkbox"/> BAR AND GRILL | To Assist the Liquor Division with scheduling inspections:<br><br><b>DO YOU OPERATE?</b><br><input checked="" type="checkbox"/> FULL TIME (e.g. Jan through Dec)<br><input type="checkbox"/> SEASONAL/PART-TIME<br>(specify months of operation)<br>from <u>January</u> to <u>December</u><br><br>DAYS OF WEEK (e.g. Mon through Sat)<br><u>Monday - Sunday</u><br><br>HOURS OF OPERATION (e.g. 10a - 2a)<br><u>Monday - Saturday 11am - 2 am</u><br><u>Sunday 11 am - 10 pm</u> |
| <b>FILING IN (CHOOSE ONLY ONE)</b><br><input checked="" type="checkbox"/> CITY OF <u>CHEYENNE</u><br><input type="checkbox"/> COUNTY OF                                                                                                                                                                                                                     | <input type="checkbox"/> LOCATED WITHIN 5 MILES OF CITY (County License only)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>FILING AS (CHOOSE ONLY ONE)</b><br><input type="checkbox"/> INDIVIDUAL <input type="checkbox"/> LLC<br><input type="checkbox"/> PARTNERSHIP <input type="checkbox"/> LLP<br><input checked="" type="checkbox"/> CORPORATION<br><input type="checkbox"/> LTD PARTNERSHIP<br><input type="checkbox"/> ASSOCIATION<br><input type="checkbox"/> ORGANIZATION |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

**1. Location of License:**

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If **Winery** or **Microbrewery**, also list manufacturing facility. W.S. 12-4-102(a)(i):

Room on east side of building - dimensions 35' x 65'

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

All of lots 3, 4, and 5, Block 5, Meadowbrooke Park Division (Zone :CB)

**2. Do you W.S. 12-4-103 (a) (iii):**

(1) **OWN** the building in which sales room is located? ☐ YES (own) ☒ YES (lease)

(2) **LEASE** the building in which sales room is located?

(A) **DATE** lease expires March 15, 2015 located on page 2 paragraph D of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page 2 paragraph F of lease document.

**NOTE:** Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

**3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business?** ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:  
 \*CraftWorks Restaurants & Breweries, Inc. (parent corporation) indirectly holds multiple micro-brewery licenses throughout the United States but none that trigger tied-house conflicts. See attached note.
5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO  
 If "YES", explain: \_\_\_\_\_
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

**RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):**

8. (a) Have you submitted a valid food service permit upon application? W.S. 12-4-407(a) W.S. 12-4-413(a) ☒ YES ☐ NO
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☒ NO ☐ N/A

**RESORT LICENSE: Complete questions 9(a) through 9(c):**

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☒ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☒ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☒ NO

**MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:**

9. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☒ NO

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail ☐ Restaurant ☐ Resort ☐ Bar and Grill:

11. (a) Do you self distribute your products? ☐ YES ☒ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☒ NO

**ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:****12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) The name and address of the grand lodge or national organization is: \_\_\_\_\_
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☒ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☒ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☒ NO

**13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) The name and address of the National Veterans organization is: \_\_\_\_\_
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☒ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☒ NO

**14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License **(THE PETITION MUST BE ATTACHED TO APPLICATION)** ? ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

**15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):**

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership. **If the application is for a Club:** State the name, date of birth and residence of each officer.

| True and Correct Name | Date of Birth | DONOT LIST<br>PO BOXES<br>Residence Address No. &<br>Street<br>City, State & Zip | Residence<br>Phone<br>Number | Have you been a<br>DOMICILED resident for<br>at least 1 year and not<br>claimed residence in any<br>other state<br>in the last year? | Have you<br>been<br>Convicted of<br>a Felony<br>Violation?  | Have you been<br>Convicted of a<br>Violation Relating<br>to Alcoholic<br>Liquor or Malt<br>Beverages? |
|-----------------------|---------------|----------------------------------------------------------------------------------|------------------------------|--------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                       |               |                                                                                  |                              | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                                          | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

| True and Correct Name         | Date of Birth | DONOT LIST<br>PO BOXES<br>Residence Address No. &<br>Street<br>City, State & Zip | Residence<br>Phone<br>Number | No. of<br>Years in<br>Corp or<br>LLC | % of Stock<br>Held | Have you<br>been<br>Convicted of<br>a Felony<br>Violation?             | Have you been<br>Convicted of a<br>Violation Relating<br>to Alcoholic<br>Liquor or Malt<br>Beverages? |
|-------------------------------|---------------|----------------------------------------------------------------------------------|------------------------------|--------------------------------------|--------------------|------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|
|                               |               |                                                                                  |                              |                                      |                    | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
| Mike Mrlik II                 | 3/2/58        | 4628 Mantle Drive, Austin, TX                                                    | 303-864-4100                 | 1                                    | 0%                 | YES <input type="checkbox"/><br>NO <input checked="" type="checkbox"/> | YES <input type="checkbox"/><br>NO <input checked="" type="checkbox"/>                                |
| Courtney Mowry                | 9/18/64       | 8084 Moore St., Arvada, CO                                                       | 303-669-2558                 | 4                                    | 0%                 | YES <input type="checkbox"/><br>NO <input checked="" type="checkbox"/> | YES <input type="checkbox"/><br>NO <input checked="" type="checkbox"/>                                |
| Rock Bottom Restaurants, Inc. | n/a           | 8001 Arista Pl., Broomfield, CO                                                  | 303-864-4000                 | n/a                                  | 100%               | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                               |               |                                                                                  |                              |                                      |                    | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                               |               |                                                                                  |                              |                                      |                    | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |
|                               |               |                                                                                  |                              |                                      |                    | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                           |

(If more information is required, list on a separate piece of paper and attach to this application.)

WLD-031 (7/07)

**OATH OR VERIFICATION**

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING )

SS.

COUNTY OF Broomfield )Before Me, Stephanie Devine

(Printed name of Notary or other officer authorized to administer oaths)

to administer oaths in and for Broomfield

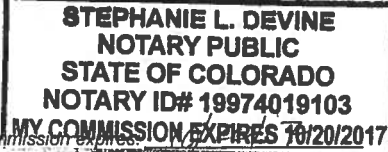
County, State of Wyoming, personally appeared

Mike Mrlik II and Courtney Mowry

name he/she being first duly sworn by me upon his oath, says that the

facts alleged in the foregoing instrument are true.

(Seal)

My Commission Expires: 10/20/2017

Witness my hand and official seal:

Stephanie L. Devine  
(Notary Public or other officer authorized to administer oaths)

Title Notary Public1. Mike Mrlik II2. Courtney Mowry

3. \_\_\_\_\_

4. \_\_\_\_\_

Dated: 10/20/13**REQUIRED ATTACHMENTS:**

- (1) Attach any lease agreements W.S. 12-4-103(a)(iii).
- (2) If building is not in existence, an architect's drawing or suitable plans of the room and premises to be licensed must be attached W.S. 12-4-102(a)(i).
- (3) A statement indicating the financial condition and financial stability of new applicant W.S. 12-4-102(a)(v).
- (4) Restaurant or Bar and Grill Liquor License Applications must attach a copy of their **CURRENT** and valid food service permit W.S. 12-4-407(a) or W.S.12-4-413(a).
- (1) Check or bank draft as payment for the application and for publishing the notice of application. W.S. 12-4-104(a). Direct billing is permissible.
- (2) If transfer, a form of assignment from current licensee, allowing transfer W.S. 12-4-601(b).

**NOTE:** Federal law requires you to pay a **SPECIAL OCCUPATIONAL TAX** (federal tax stamp) before you begin business and before July 1 each year thereafter. If you have not paid this tax, contact:

BUREAU OF ATF  
JOHN WELD PECK FEDERAL BLDG RM 6525  
550 MAIN ST  
CINCINNATI OH 45202-3263  
1-800-937-8864

**ADVERTISING REQUIREMENTS W.S. 12-4-104(a):**

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

**HEARING REQUIREMENTS W.S. 12-4-104(b):**

Any license or permit authorized under this title shall not be issued, renewed or transferred until on or after the date set in the notice for hearing protests. If a renewal hearing, the hearing shall be held no later than thirty (30) days preceding the expiration date of the license or permit. A license or permit shall not be issued, renewed or transferred if the licensing authority finds from evidence presented at the hearing:

- (i) The welfare of the people residing in the vicinity of the proposed license or permit premises shall be adversely and seriously affected;
- (ii) The purpose of this title shall not be carried out by the issuance, renewal or transfer of the license or permit;
- (iii) The number, type and location of existing licenses or permits meets the needs of the vicinity under consideration;
- (iv) The desires of the residents of the county, city or town will no be met or satisfied by the issuance, renewal or transfer of the license or permit; or
- (v) Any other reasonable restrictions or standards which may be imposed by the licensing authority shall not be carried out by the issuance, renewal or transfer of the license or permit.

| FOR LIQUOR DIVISION USE ONLY |          |      |
|------------------------------|----------|------|
| Reviewer                     | Initials | Date |
| Clerk:                       |          |      |
| Agent:                       |          |      |
| Acct.:                       |          |      |



## JOHNSON RESTAURANT GROUP, INC

229 East 2nd St. Suite 200 (82601) | PO Box 50630 | Casper, WY 82605

PHONE 307.265.3029 | FAX 307.473.2909

October 22, 2013

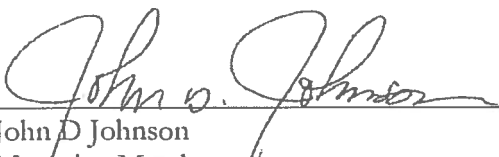
City of Cheyenne  
2101 O'Neil Ave.  
Cheyenne, WY 82001

**RE: TRANSFER RETAIL LIQUOR LICENSE  
FROM OC CHEYENNE, LLC TO WADSWORTH OLD CHICAGO, INC.  
1734 MEADOWLAND DRIVE, CHEYENNE, WY 82009**

To Whom It May Concern:

Please allow this letter to serve as our request that the licensing authority consider the retail liquor license transfer application from Wadsworth Old Chicago, Inc. for the above-referenced restaurant. The current proposal is this store, which is currently a franchised Old Chicago location, would convert to a corporate location. We anticipate minimal disruption for the guests and are hopeful there will be no down time.

We are in support of this application and are available for any questions you may have. Thank you in advance for your consideration.

  
John D Johnson  
Managing Member  
OC Cheyenne, LLC





201 West Main Street, Suite 301  
Chattanooga, TN 37408  
p: 423.424.2000 · f: 423.752.1973

8001 Arista Place, Suite 500  
Broomfield, CO 80021  
p: 303.664.4000 · f: 303.664.4199

October 21, 2013

Mayor Richard L. Kaysen  
Members of the City Council  
City of Cheyenne  
2101 O'Neil Ave.  
Cheyenne, WY 82001

**RE: TRANSFER RETAIL LIQUOR LICENSE  
OC CHEYENNE, LLC TO WADSWORTH OLD CHICAGO, INC.  
1734 MEADOWLAND DRIVE, CHEYENNE, WY**

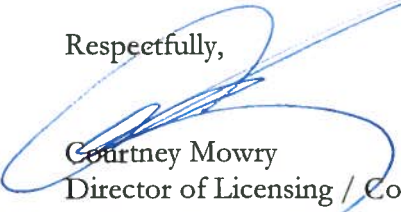
Dear Mr. Mayor and Members of City Council,

Please accept this letter as request for your consideration for a retail liquor license transfer for the above-referenced restaurant. As you may be aware, Old Chicago Cheyenne opened some years ago as a franchised location owned and operated by OC Cheyenne, LLC . At this time, the parties have mutually decided to convert this location to a corporate store. Given the extensive scope of the Old Chicago operations in Colorado, migrating in to the Cheyenne market makes sense from a managerial, training, and marketing perspective. We're excited about the possibility of our first corporate restaurant in Wyoming.

Given this transfer is from franchisee to franchisor, we anticipate minimal changes for the guests and staff. We have designated capital to provide a minor refresh to this restaurant including décor upgrades that may include a new AV package, paint, lighting and signage as well as a regional marketing plan. There will be no, however, premise or structural changes that deviate from the floor plan of record. We further pride ourselves on our responsible service of alcohol training program and, as described in further details in other application materials, will assure this location meets or exceeds our training requirements.

We appreciate your consideration of our application and invite you to contact us with any questions you may have or additional information that would be helpful with your deliberation. Thank you.

Respectfully,



Courtney Mowry  
Director of Licensing / Contracts  
CraftWorks Restaurants & Breweries Group, Inc.  
8001 Arista Place, 5th Fl., Broomfield, CO 80021  
(303) 664-4113  
cmowry@cwrestaurants.com



Today, 2013, Broomfield and Chattanooga-based CraftWorks Restaurants & Breweries, Inc. operate 135 dining restaurants across the nation, including Brewery Restaurants and Old Chicago.

#### **Our Mission:**

*"To run great restaurants...for the benefit of our Guests, our Community, and Ourselves."*

A warm and inviting neighborhood restaurant, Old Chicago offers friendly service and a moderately priced menu with a variety of items for lunch and dinner. In addition to the ever-so-popular Chicago style, deep-dish pizzas, Old Chicago features thin crust and stuffed crust pizzas with made-from-scratch dough, pastas, calzones, salads, burgers and sandwiches, all made with fresh ingredients daily. Menu is attached for your review.

Because there is no better complement to pizza than beer, Old Chicago is home to 110 different brews from around the world with 30 on draught. For true beer connoisseurs, Old Chicago's famous World Beer Tour is the perfect fit. Members of the World Beer Tour are challenged to taste test 110 different beers from around the world earning many prizes and exclusive benefits along the way. Guests are invited to watch their favorite sporting events on large-screen televisions, enjoy a mouth-watering lunch, dinner or just drop in for delicious appetizers to share and enjoy the casual, local neighborhood atmosphere.

The majority of the estimated 90 employees, including full time, part time, and Managers, will be hired from the local community.

Our Old Chicago restaurants place significant emphasis on staff training, with a special emphasis on the responsible service of alcohol beverages. Each server, at the time of opening, is **required** to have successfully completed the standardized test in the National Restaurant Association's certified *ServSafe Alcohol* Program. The *ServSafe Alcohol* course consists of class instruction employing training videos as well as a written guide and generally takes 4-5 hours to complete including administration of the exam. The *ServSafe Alcohol* course includes comprehensive coverage of areas such as "Alcohol, Law, and Your Responsibility," "Recognizing and Preventing Intoxication," "Checking Identification," and "Handling Difficult Situations." The program further allows for our trainers to incorporate state and/or local specific issues or restrictions such as hours of service, record keeping requirements, and right of entry. In addition, Old Chicago is a member of the **BARS PROGRAM** (Being A Responsible Server). BARS (an independently owned and operated national company) is used - at direct restaurant expense - to monitor the effectiveness of our server's asking for ID of customers 30 years and under when alcohol is ordered.

[www.OldChicgao.com](http://www.OldChicgao.com)



**FINANCIAL SUMMARY FOR WADSWORTH OLD CHICAGO, INC.**

\*100% stockholder of Rock Bottom Restaurants, Inc.

*October 21, 2013*

CraftWorks Restaurants and Breweries, Inc. is now the nation's leading operator and franchisor of brewery and craft beer-focused casual dining restaurants with nearly 200 owned and franchised locations across the United States. CraftWorks' primary concepts include **Old Chicago**, Rock Bottom and Gordon Biersch. CraftWorks also operates strong regional brands, including ChopHouse and Big River Grille and Brewing Works. The company maintains dual headquarters in Chattanooga, TN and Broomfield, CO. In 2012, our sales revenue totaled over \$444 million and our assets exceeded \$326 million.

Wadsworth Old Chicago, Inc., a Colorado Corporation, is a wholly owned subsidiary of Rock Bottom Restaurants, Inc. which is a wholly owned subsidiary of CraftWorks Restaurants & Breweries, Inc.

All funds necessary to operate and fund the Old Chicago in Cheyenne, WY will be provided to Wadsworth Old Chicago, Inc. by its ultimate parent company CrafWorks Restaurants & Breweries, Inc. Funds are in the form of an equity investment derived from cash generated from current operations including nearly 200 corporate and franchised restaurants nationwide.

Upon request we can provide a confidential balance sheet.

***BANK & TRADE REFERENCES***

Type of Business:

Multi-Brand National Restaurant Chain

Wells Fargo Commercial Capital

Account #1828105951

Attention: Brandon Barnett

5938 Priestly Drive #200

Tel: (760) 918-2757

Carlsbad, CA 92008

Fax: (760) 918-2727

Trade References:

***Edward Don***

***SYSCO Food Services***

135 South La Salle Street

Liz Rodriquez, Credit Rep.

Department 2562

5000 Beeler St.

Chicago, IL 60674-2562

Denver, CO 80238

Ph (800) 627-0131

Ph (303) 585-2223

Mike Mrlik II, Interim President / VP / Director

October 21, 2013

**DRAFTED BY AND WHEN RECORDED RETURN TO:**

**Rebecca L. Fischer, Esq.**  
**CraftWorks Restaurants & Breweries Group, Inc.**  
**8001 Arista Place, Suite 500**  
**Broomfield, Colorado 80021**

**MEMORANDUM OF LEASE**

**THIS MEMORANDUM OF LEASE** (this "Memorandum"), dated as of the 12th day of November, 2013, is made by and between, 1734 Partners, LLC, a Wyoming limited liability company ("Landlord"), and Wadsworth Old Chicago, Inc., a Colorado corporation ("Tenant");

**R E C I T A L S**

1. Landlord is the fee simple title owner of that certain parcel of property in the City of Cheyenne, State of Wyoming, described as 1734 Meadowland Drive, Cheyenne, WY 82009, legally described on Exhibit "A" attached hereto and made a part hereof (the "Premises").

2. Landlord and Tenant have entered into that certain Lease Agreement dated as of November 12, 2013, as amended and modified (the "Lease"), pursuant to which Landlord has agreed to lease to Tenant the Premises upon the terms and conditions set forth in the Lease.

3. Landlord and Tenant desire to set forth certain terms and provisions of the Lease in this Memorandum for recording purposes and to provide constructive notice of the Lease.

**NOW, THEREFORE**, for and in consideration of the rents reserved and the covenants and conditions set forth in the Lease, Landlord and Tenant do hereby covenant, promise and agree as follows:

A. **Definitions.** Capitalized terms used herein which are not otherwise defined herein shall have the respective meanings ascribed to them in the Lease.

B. **Grant of Lease.** Pursuant to the Lease and this Memorandum, Landlord hereby demises and leases to Tenant and Tenant hereby leases from Landlord the Premises upon the terms and conditions set forth herein and in the Lease.

C. **Commencement Date.** The Term shall commence on December 9, 2013.

D. **Expiration Date.** The Term of the Lease shall expire, unless sooner terminated or unless extended or renewed as provided herein and therein, on March 15, 2015.

E. **Rent.** The Rent due and payable from Tenant to Landlord for the Term of the Lease and any extension thereof shall be determined and shall be payable pursuant to the terms and provisions of the Lease.

F. **Liquor License.** Pursuant to the Lease, Tenant may use any part of the Premises for the sale or distribution of alcoholic beverages and malt beverages.

G. **Miscellaneous.** All of the other terms and conditions of the Lease are more fully set forth in the Lease and are incorporated herein by this reference.

(i) This Memorandum is executed for recording purposes only and is not intended to alter or amend the terms of the Lease. In the event of a conflict between this Memorandum and the Lease, the Lease shall control.

(ii) This Memorandum shall run with the Land and inure to the benefit of and be binding upon Landlord and Tenant and their respective representatives, successors and assigns.

(iii) This Memorandum may be executed in several counterparts, each of which when so executed and delivered shall constitute an original, fully enforceable counterpart for all purposes.

*[Remainder of Page Intentionally left blank]*

IN WITNESS WHEREOF, Landlord and Tenant have executed this Memorandum as of the date first written above.

LANDLORD:

1734 PARTNERS, LLC,  
a Wyoming limited liability company

By: John D. Johnson  
Name: JOHN D. JOHNSON  
Title: Managing Member

TENANT:

WADSWORTH OLD CHICAGO, INC.,  
a Colorado corporation

By: Rebecca Fischer  
Name: Rebecca Fischer  
Title: General Counsel

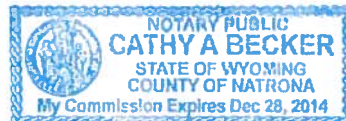
STATE OF WYOMING     )  
                                  }ss.  
COUNTY OF Natrona

The foregoing Memorandum of Lease was acknowledged before me this 13<sup>th</sup> day of November, 2013 by John J. Johnson, manager and authorized agent of 1734 Partners, LLC, a Wyoming limited liability company.

Witness my hand and official seal.

Cathy A. Becker  
Notary Public

My Commission Expires: 12/28/14



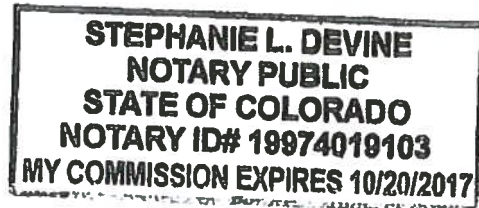
STATE OF Colorado )  
COUNTY OF Broomfield ) ss.

The foregoing Memorandum of Lease was acknowledged before me this 13 day of November, 2013, by Rebecca Fischer, General Counsel and authorized agent for Wadsworth Old Chicago, Inc., a Colorado Corporation.

Witness my hand and official seal.

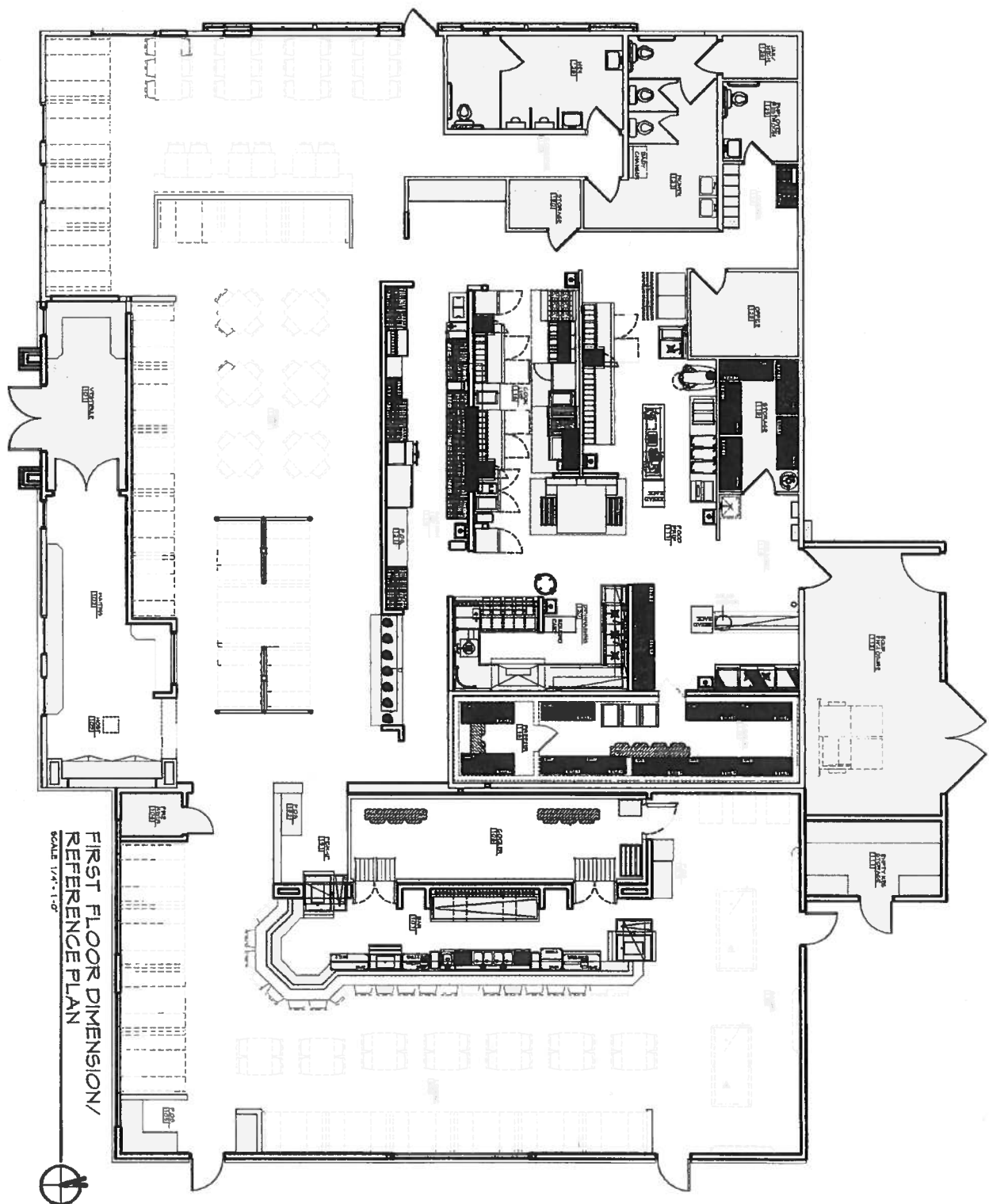
Stephanie L. Devine  
Notary Public

My Commission Expires: 10/20/17



**Exhibit A**  
**Legal Description**

**All of Lots 3, 4, and 5, Block 5, Meadowbrooke Park Division, City of Cheyenne,  
Laramie County, Wyoming**



CERTIFICATE OF LIEN SEARCH  
CLERK OF LARAMIE COUNTY

A search of the records of this office indicates the listing below is a record of the presently effective Financing Statements and Statements of Assignment which we have found on record for **OC CHEYENNE, LLC** THE UNDERSIGNED, FOR HIMSELF AND FOR LARAMIE COUNTY, DISCLAIMS ANY WARRANTIES, EXPRESS OR IMPLIED, THAT THE FOREGOING IS ABSOLUTELY EXHAUSTIVE AND CORRECT AND NEITHER SHALL BE LIABLE IN ANY WAY WHATSOEVER FOR ANY LOSS OR DAMAGE OF ANY KIND AS A RESULT OF ANY INACCURACIES OR OMISSIONS WITH REGARD TO THIS ABSTRACT. THE SOLE PURPOSE OF THIS ABSTRACT IS TO ACCOMMODATE PERSONS WHO ARE UNABLE OR UNWILLING TO PERSONALLY EXAMINE THE AFORESAID RECORDS.

Note: CM= Chattel Mortgage

FS= Financing Statement

SA= Security Agreement

TL= Tax Lien

| TYPE | NUMBER | DATE FILED | TIME | MORTGAGEE | AMOUNT | DESCRIPTION |
|------|--------|------------|------|-----------|--------|-------------|
|------|--------|------------|------|-----------|--------|-------------|

NO UCC LIENS WERE FOUND

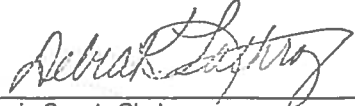
NO FEDERAL NOR STATE TAX LIENS WERE FOUND

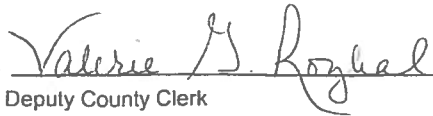
Requested by: Courtney Mowry

Date: 10/24/2013

Years Checked: 01/01/2007 TO DATE

SEAL

  
Laramie County Clerk

By: 

Deputy County Clerk

DEPUTY COUNTY CLERK  
MY TERM EXPIRES JAN. 5, 2015

010-004 (R11/11)



**Wyoming Secretary of State**  
State Capitol Building, Room 110  
200 West 24<sup>th</sup> Street  
Cheyenne, WY 82002-0020  
Ph. 307.777.7311  
Fax 307.777.5339  
Email: [Business@wyo.gov](mailto:Business@wyo.gov)

For Office Use Only

**COPY**

*filed w/  
Sec. of State*

## Foreign Profit Corporation Application for Certificate of Authority

Pursuant to W.S. 17-16-1503 of the Wyoming Business Corporation Act, the undersigned corporation hereby applies for a Certificate of Authority to transact business in the state of Wyoming, and for that purpose submits the following statement:

1. Name of the Corporation as incorporated:

Wadsworth Old Chicago, Inc.

2. Incorporated under the laws of:

Colorado

*(State or country of incorporation)*

3. Date of incorporation:

11/01/1985

*(Date – mm/dd/yyyy)*

4. Period of duration:

perpetual

*(This is referring to the length of time the corporation intends to exist and not the length of time it has been in existence. The most common term used is "perpetual." You may refer to your Articles of Incorporation or contact the Corporations Division in your state of incorporation for your period of duration.)*

5. Mailing address of the corporation:

8001 Arista Place, 5th Place, Broomfield, CO 80021

6. Principal office address:

8001 Arista Place, 5th Place, Broomfield, CO 80021

7. Name and physical address of its registered agent:

*(The registered agent may be an individual resident in Wyoming, a domestic or foreign entity authorized to transact business in Wyoming, having a business office identical with such registered office. The registered agent must have a physical address in Wyoming. A Post Office Box or Drop Box is not acceptable. If the registered office includes a suite number, it must be included in the registered office address.)*

National Registered Agents, Inc.  
1712 Pioneer Avenue #120  
Cheyenne, WY 82001

8. Names and usual business addresses of its current officers and directors:

| <u>Office</u>  | <u>Name</u>                                 | <u>Address</u>                      |
|----------------|---------------------------------------------|-------------------------------------|
| President      | Mike Mrlik II 4628 Mantle Drive, Austin, TX |                                     |
| Vice President | Mike Mrlik II 4628 Mantle Drive, Austin, TX |                                     |
| Secretary      | Courtney Mowry (Assistant Secretary)        | 8084 Moore Street, Arvada, CO 80005 |
| Treasurer      | vacant                                      |                                     |
| Director       | Mike Mrlik II 4628 Mantle Drive, Austin, TX |                                     |
| Director       | vacant                                      |                                     |
| Director       | vacant                                      |                                     |

9. State the date this corporation began doing business in Wyoming or the date it will begin to do business in Wyoming. (Please note that a corporation doing business in Wyoming without authority may be subject to back taxes and penalties pursuant to W.S. 17-16-1502(d).):

11/01/2013

(mm/dd/yyyy)

10. The corporation accepts the constitution of the state of Wyoming in compliance with the requirement of Article 10, Section 5 of the Wyoming Constitution.

11. For name availability purposes list the type of business the corporation will be conducting:

Full service restaurant

**Signature:**

(May be executed by Chairman of Board, President or another of its officers.)

**Date:**

10/25/2013

(mm/dd/yyyy)

Print Name: Courtney Mowry

Contact Person: Courtney Mowry

Title: Director of Licensing / Contracts

Daytime Phone Number: (303) 664-4113

Email: cmowry@cwrestaurants.com